

Points and authorities needed: petitioner does not show how § 850 relief is available where neither decedent nor the estate holds, has held, or claims any interest in the disputed proceeds.

Petitioner response is needed: petitioner provides insufficient information concerning the dissolution action in Sacramento County Superior Court. Petitioner alleges said action "is still pending," suggesting said court previously granted a status-only dissolution decree pursuant to Fam.C. § 2337. If that occurred, the court was required to "expressly reserve jurisdiction for later determination of all other pending issues." *Id.* at subdiv. (f). Petitioner's claim that decedent violated ATROs and she is entitled to the proceeds of his life insurance policy appears to fall within "all other pending issues." Accordingly, the petition here provides insufficient information to determine whether petitioner's claim can be heard in this court.

Petitioner response is needed: the petition includes insufficient information concerning the policy, premiums, and insurability of decedent to apply *Marriage of Burwell* (2013) 221 Cal.App.4th 1, a case cited by petitioner in support of the petition.

19. S-PR-0014084 In Re the Estate of Reed, Gloria L.

It is recommended the primary residence succession petition be denied. The terms of the will offered by petitioners include that "the home is to be sold and divided between Dan and Dennis." Petitioners are thus not devisees of the primary residence of decedent but only the proceeds of sale of the primary residence. Prob.C. § 13150 does not authorize a petition to determine succession to sale proceeds of estate property.

If the matter proceeds notwithstanding the foregoing recommended, the following additional calendar notes are provided:

Missing sufficient notice of hearing and service of notice of hearing. Mandatory form DE-115 is used only for Prob.C. § 850 petitions, as it states in ¶ 1. For other petitions, form DE-120 is required.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

20. S-PR-0014085 In Re the Estate of Christensen, Sandra Melvina

Petition to administer estate is recommended for approval as prayed.